

Hearing of the President of the Authority for the Protection of Personal Data, Prof. Pasquale Stanzione
- Inquiry "AI - Work"
Chamber of Deputies - XI Commission (Labor)
(7 May 2024)
- THE VIDEO OF THE HEARING

First of all, I would like to thank the Commission for including, within the scope of the inquiry, the perspective of data protection: this is not a given but an important aspect, especially concerning the conjunction between AI and work.

Indeed, as will be discussed, data protection is a determining component of the regulation of AI, and work has long constituted a context in which rights of freedom, such as the right to privacy, play a significant role. Stefano Rodotà noted that privacy in Italy received its first recognition with the Workers' Statute and its provisions aimed at guaranteeing the worker's freedom of self-determination in relation to employer controls that can reach, thanks to technology, particular levels of invasiveness. The guarantees in this area are entrusted to the instruments of prohibition, referring to data processing that could intolerably harm self-determination (Article 8: prohibition of investigation into the opinions, particularly political and trade union, of workers) and limitation, conditioned on the fulfillment of obligations, including informational ones (Article 4, for controls on work activity).

This duality (prohibition/limits related to the principle of transparency) also characterizes the regulation of algorithmic decision-making based on personal data (Article 22 of Regulation (EU) 2016/679), the general structure of the Artificial Intelligence Act, and the draft directive on platform work: all regulations that can offer important guarantees to a labor market that, with the integration of AI, reveals new protection needs.

The principle of transparency, which is its expression, has recently been enhanced in this area by Article 4 of Legislative Decree 104/22, implementing Directive (EU) 2019/1152, concerning transparent and predictable working conditions in the European Union, which introduced a specific informational obligation on the employer (however limited by Decree Law 48/23 to cases of full automation) regarding the use of automated decision-making or monitoring systems in the management of the employment relationship.

In particular, this concerns automated decision-making or monitoring systems "designated to provide relevant indications for hiring or assigning tasks, managing or terminating the employment relationship, assigning duties or tasks as well as indications affecting surveillance, evaluation, performance, and fulfillment of contractual obligations of workers."

The provision of this informational obligation, extended to trade union representatives, naturally preserves what is provided by Article 4 of Law 300/1970, according to which, indeed, the tools from which the possibility of remote control of workers' activities derives can be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets, and can be installed subject to a collective agreement concluded by the unitary trade union representation or by company trade union representatives or upon administrative authorization.

Furthermore, in order to verify that the tools used for the performance of work are compliant with the provisions of Regulation (EU) 2016/679, the employer or client is required to carry out a privacy impact assessment with possible prior consultation of the Authority.

This represents an additional guarantee compared to the transversal one of Article 22 of Regulation (EU) 2016/679, which prohibits decisions based solely on automated processing, with significant effects on the individual, in the absence of guarantees such as the right to know the logic used, to obtain human intervention, and to not be subject to discriminatory decisions. It has allowed the Authority to recognize important protections even in a delicate area such as platform work for riders (Provision No. 234 and 285 of 2021). The Authority has particularly emphasized the right to obtain human intervention, express one's opinion, and contest the algorithmic decision, also prescribing measures aimed at minimizing the risk of bias and avoiding improper and discriminatory uses of

reputation mechanisms based on feedback.

Similar principles are contained in the draft European directive on platform work, with particular guarantees for "biometric data, related to private conversations, those from which racial or ethnic origin, migrant status, political opinions, religious or philosophical beliefs, disability, health status, emotional or psychological state, union membership, sexual life or orientation can be inferred."

A partial anticipation of the contents of the directive was provided by a draft bill from the previous legislature on which the Authority issued an opinion (No. 94/22), substantially similar to AS 280 of this legislature. According to the principle of "Human in command," it imposed, among other things, on platforms the obligation to periodically monitor the impact of individual automated decisions, also providing, in favor of those responsible for carrying out such functions, forms of protection against dismissal or other unfavorable measures related to the non-acceptance of algorithmic decisions.

****Furthermore, it was established that the use of automated decision-making and monitoring systems should not compromise the mental and physical health of platform workers, and it was anticipated that information and consultation with trade union representatives regarding the monitoring of AI and the risks, including discriminatory risks that may arise from it, would take place.****

1. The duty to inform worker representatives is also provided for by the Artificial Intelligence Act for high-risk AI systems (art. 26, p.7), including those used for personnel selection and evaluation and for making decisions regarding the conditions of the employment relationship.

2. Furthermore, the AI Act prohibits, with exceptions for health or safety uses, the use of AI systems to infer a person's emotions in the workplace context.

3. The adaptation of the internal legal system to the AI Act, as well as to the directive to be adopted once approved, could represent an important opportunity for the introduction of additional guarantees beyond the general one provided for in art. 22 of Regulation (EU) 2016/679, which is complementary and nonetheless central within the intricate regulatory framework of AI, in such a complex context as the workplace.

4. The Authority will naturally provide its advisory contribution to the legislator, also in light of the experience gained in the very delicate area of protecting workers from the risks associated with the use of new technologies and the evasion of guarantees introduced since 1970 concerning employer power.

****Thank you.****